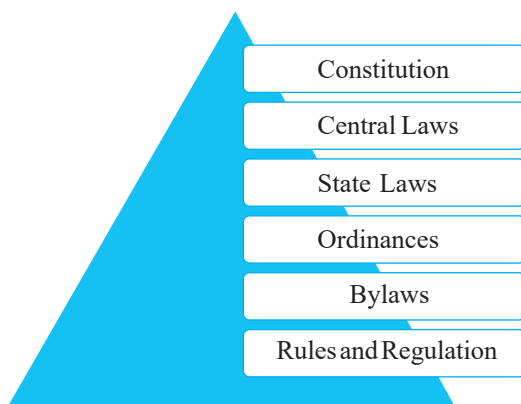


# 2

## Making of the Indian Constitution

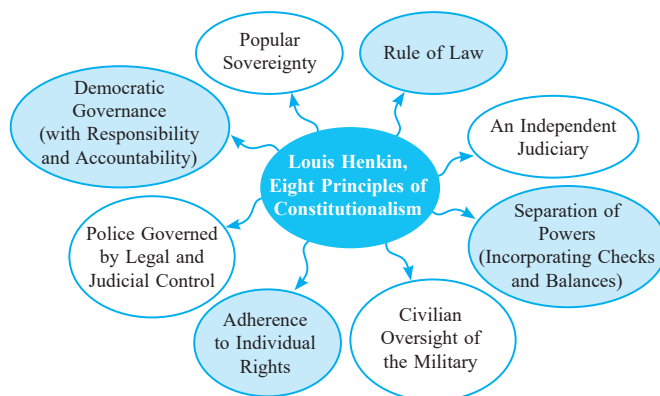
### BASIC CONCEPTS RELATED TO CONSTITUTION

- **Law:** Rules governing behaviour, either written or unwritten; enacted by legislative bodies with legal force. Example: BNSS, Citizenship Amendment Act
- **Ordinance:** Temporary law issued by the President or Governor when the legislature is not in session; requires legislative approval. Example: COVID-19 lockdown ordinance.



Hierarchy of Laws in India

- **Bylaws:** Regulations made by local authorities; subordinate to central/state laws. Example: Municipal construction regulations
- **Constitution:** Supreme law outlining government structure and powers; foundation of the legal system. Example: Constitution of India
- **Rules:** Detailed instructions issued by the executive to implement laws; subordinate to laws and bylaws. Example: Passport application rules
- **Regulations:** Specific and technical guidelines issued by regulatory bodies. Example: SEBI regulations for listed companies.
- **Rule of Law:** As defined by British jurist A.V. Dicey, it asserts that law governs a nation, ensuring that no individual or institution, including the government, is above it. Key Elements include:



- **Supremacy of Law:** Law is the highest authority.
- **Equality Before the Law:** All individuals are subject to the same laws.
- **Accountability:** Government actions must be legally justified.
- **Legal Certainty:** Laws must be clear, public, and stable.
- The Supreme Court of India recognizes the '**Rule of Law**' as a '**Basic Structure**' of the Constitution, making it impervious to amendments. [UPSC 2018]
- **Constitutionalism:** According to Friedrich, "Constitutionalism ensures that the government operates within set rules, promoting fairness and accountability." The **primary purpose** of a constitution is to provide a **framework** for government, determining its nature and form. As the **fundamental law** of the state, it outlines the responsibilities of the **executive, legislature, and judiciary**. The **legislature** makes laws in accordance with the limits and directions provided by the constitution. [UPSC 2023]
- **Constitution vs. Constitutionalism:** A country can have a Constitution but may lack true Constitutionalism. For instance, a dictatorship might have a Constitution that isn't followed.
- **Types of Constitution:**
  - **Written Constitution:** A formal document outlining government structure and citizen rights. Example: U.S. Constitution.

- **Unwritten Constitution:** Composed of various sources like statutes and traditions, not in a single document. Example: United Kingdom Constitution.
- **Flexible Constitution:** Can be easily amended like regular laws. Example: British Constitution.
- **Rigid Constitution:** Requires a complex process for amendments. Example: U.S. Constitution.
- **Federal Constitution:** Divides powers between central and regional governments. Examples: U.S., Germany.
- **Unitary Constitution:** Centralizes power in one government. Example: United Kingdom.
- **Presidential Constitution:** Separates executive and legislative branches; the President is both head of state and government. Example: United States.
- **Parliamentary Constitution:** Executive comes from the legislature; the Prime Minister leads. Examples: U.K., India.
- **Monarchical Constitution:** Recognizes a monarch, either with limited powers (constitutional) or significant powers (absolute). Examples: U.K., Sweden.
- **Republican Constitution:** Establishes a republic without a monarchy; the head of state is elected. Examples: U.S., France.
- **Theocratic Constitution:** Based on religious laws and principles. Example: Iran.
- **Secular Constitution:** Separates religion from government laws. Example: Indian Constitution.

## DEMAND FOR A CONSTITUENT ASSEMBLY

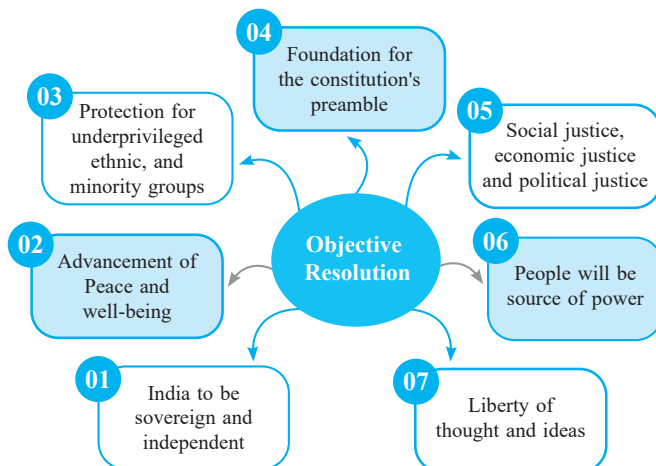
- **1934:** **M.N. Roy** proposed the idea of a Constituent Assembly for India.
- **1935:** The **Indian National Congress (INC)** officially demanded a Constituent Assembly to draft the **Indian Constitution**.
- **1938:** **Jawaharlal Nehru**, representing the INC, stated that the constitution must be created by a **Constituent Assembly** elected through an **adult franchise**.
- **1940:** The British government accepted the demand in principle during the **August Offer**.
- **1942:** The **Cripps Proposal** suggested drafting an independent Constitution post-**World War II**, but it was rejected by the **Muslim League**, which sought the division of India into two autonomous states.
- **1946:** The **Cabinet Mission Plan (CMP)** proposed a single Constituent Assembly, gaining some acceptance from the **Muslim League**.

## IMPORTANT DATES OF CONSTITUENT ASSEMBLY

- **9th December 1946:** First sitting of the **Constituent Assembly**; **Muslim League** boycotted.
- **11th December 1946:**
  - **Dr. Rajendra Prasad** elected as President.
  - **Dr. Sachidanand Sinha** (oldest member) became temporary chairman.
  - **Vice-Presidents:** **H.C. Mukherjee** and **V.T. Krishnamachari**.
- **13th December 1946:** **Objective Resolution** introduced by **Jawaharlal Nehru**.
- **22nd January 1947:** **Objective Resolution** was adopted.
- **22nd July 1947:** The **National Flag** was adopted by the Constituent Assembly.
- **15th August 1947:** Transfer of power established the dominions of **India** and **Pakistan** (14th August 1947).
- **May 1949:** **Constituent Assembly** ratified India's membership in the **Commonwealth**.
- **26th November 1949:** The **Constitution** was adopted/enacted.
- **24th January 1950:** Adoption of the **National Song** and **National Anthem**. **Dr Rajendra Prasad** was elected as the first President of India. The final session of the **Constituent Assembly** was held. Continued as the **provisional Parliament** of India until the formation of the new Parliament in **May 1952**.
- **26th January 1950:** The Constitution came into force, marking the establishment of **India as a Republic**.

## OBJECTIVE RESOLUTION

- It contained the **fundamentals** and **philosophy** of the Constitutional structure.



- **Declaration:** India as an **Independent Sovereign Republic**.
- **Union of Territories:** Includes British India, Indian States, and territories willing to join.
- **Autonomy:** Territories retain status as autonomous units with residual powers, except those assigned to the Union.
- **People's Authority:** All power derives from the people of India.
- **Justice and Equality:** Guarantees social, economic, and political justice; equality of opportunity; freedom of thought, expression, and action.
- **Minority Safeguards:** Provisions for minorities and backward classes.
- **Territorial Integrity:** Sovereign rights on land, sea, and air maintained.
- **Global Contribution:** Commitment to world peace and welfare.
- **The Preamble** of the Constitution of India is a **modified version** of the Objective Resolution.

## ALL ABOUT CONSTITUENT ASSEMBLY

| Heading                                           | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|---------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Constituted</b>                                | <ul style="list-style-type: none"> <li>● <b>November 1946:</b> Formed under the <b>Cabinet Mission Plan</b>.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Strength</b>                                   | <ul style="list-style-type: none"> <li>● <b>Total Members:</b> 389 (296 from <b>British India</b> + 93 from <b>Princely States</b>).</li> <li>● <b>British India:</b> 292 members from <b>11 governor's provinces</b> and <b>4 Chief Commissioner's provinces</b>.</li> </ul>                                                                                                                                                                                                                                                                                                            |
| <b>Composition</b>                                | <ul style="list-style-type: none"> <li>● Representatives from diverse sections of Indian society, including: <ul style="list-style-type: none"> <li>○ <b>Hindus, Muslims, Sikhs, Parsis, Anglo-Indians, Indian Christians, SCs, STs.</b></li> <li>○ Women from all these sections.</li> </ul> </li> </ul>                                                                                                                                                                                                                                                                                |
| <b>Seat Allocation</b>                            | <ul style="list-style-type: none"> <li>● Seats are allocated in proportion to the <b>population</b> of each province and princely state.</li> <li>● Seats for each British province were divided among three principal communities: <b>Muslims, Sikhs, and General</b>.</li> </ul>                                                                                                                                                                                                                                                                                                       |
| <b>Voting Method</b>                              | <ul style="list-style-type: none"> <li>● <b>Proportional representation</b> using a <b>Single Transferable Vote</b> for provincial representation.</li> <li>● Representatives from princely states were nominated by their heads.</li> </ul>                                                                                                                                                                                                                                                                                                                                             |
| <b>Members</b>                                    | <ul style="list-style-type: none"> <li>● <b>Partly elected</b> (in British Provinces) and <b>partly nominated</b> (by heads of Princely states).</li> <li>● Members are indirectly elected by provincial assembly members.</li> </ul>                                                                                                                                                                                                                                                                                                                                                    |
| <b>Notable Absence</b>                            | <ul style="list-style-type: none"> <li>● <b>Mahatma Gandhi</b> did not participate in the Constituent Assembly.</li> <li>● <b>93 seats</b> allotted to princely states remained unfilled as they opted out.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                   |
| <b>Key Facts</b>                                  | <ul style="list-style-type: none"> <li>● <b>Total Sessions:</b> 11</li> <li>● <b>Duration:</b> 2 years, 11 months, and 18 days</li> <li>● <b>Total Expenditure:</b> 64 lakh</li> <li>● <b>Symbol:</b> Elephant adopted as the seal of the Constituent Assembly.</li> </ul>                                                                                                                                                                                                                                                                                                               |
| <b>Changes Made by the Independence Act, 1947</b> | <ul style="list-style-type: none"> <li>● <b>Sovereign Body:</b> The Assembly was declared fully sovereign, able to alter any law.</li> <li>● <b>Dual Functions:</b> <ul style="list-style-type: none"> <li>○ <b>Legislative Body:</b> Chaired by <b>G. V. Mavalankar</b>.</li> <li>○ <b>Constituent Body:</b> Chaired by <b>Dr. Rajendra Prasad</b>.</li> </ul> </li> <li>● <b>First Parliament:</b> Became the first <b>Parliament of free India</b>.</li> <li>● <b>Membership:</b> Strength reduced to 299 after the <b>Muslim League</b> withdrawal, down from <b>389</b>.</li> </ul> |

|                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|----------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Key Personnel</b>       | <ul style="list-style-type: none"> <li>• <b>Sir B. N. Rau:</b> Constitutional Adviser.</li> <li>• <b>H.V.R. Iyengar:</b> Secretary to the Constituent Assembly.</li> <li>• <b>S.N. Mukherjee:</b> Chief draftsman of the Constitution.</li> <li>• <b>Prem Behari Raizada:</b> Calligrapher of the Constitution.</li> <li>• <b>Nand Lal Bose &amp; B.R. Sinha:</b> Responsible for decorating the Constitution.</li> <li>• <b>Hindi Calligraphy:</b> Vasant Krishan Vaidya and illuminated by <b>Nand Lal Bose</b>.</li> </ul> |
| <b>Women Participation</b> | <ul style="list-style-type: none"> <li>• <b>Initial Membership of Constituent Assembly:</b> 15 women, later increased by 2</li> <li>• <b>Women Signatories of the Indian Constitution:</b> 11 women, namely, G. Durgabai, Ammu Swaminathan, Amrit Kaur, Dakshayani Velayudhan, Hansa Mehta, Renuka Ray, Sucheta Kripalani, Purnima Banerji, Begum Qudsiya Aizaz Rasul, Kamala Chaudhri and Annie Mascarene.</li> </ul>                                                                                                        |

## VARIOUS COMMITTEES OF THE CONSTITUENT ASSEMBLY

### Major Committees

| Chairman                  | Committees                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Jawaharlal Nehru</b>   | Union Powers Committee, Union Constitution Committee, States Committee<br><b>Expert Committee of the Congress (July 8, 1946): Chairman:</b> Jawaharlal Nehru<br><b>Purpose:</b> To prepare material for the Constituent Assembly<br><b>Members:</b> M. Asaf Ali, K.M. Munshi, N. Gopalaswami Ayyangar, K.T. Shah, D.R. Gadgil, Humayun Kabir, K. Santhanam                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Dr Rajendra Prasad</b> | Rules of Procedure Committee, Steering Committee.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Sardar Patel</b>       | Provincial Constitution Committee, Advisory Committee on FRs and Minorities & Tribal & Excluded Areas (had 5 Sub-committees) <ul style="list-style-type: none"> <li>○ Fundamental Rights Sub-Committee - J.B. Kripalani</li> <li>○ Minorities Sub-Committee - H.C. Mukherjee</li> <li>○ North-East Frontier Tribal Areas and Assam Excluded &amp; Partially Excluded Areas Sub-Committee-Gopinath Bardoloi</li> <li>○ Excluded and Partially Excluded Areas (other than those in Assam) Sub-Committee - A.V. Thakkar</li> <li>○ North-West Frontier Tribal Areas Sub-Committee</li> </ul>                                                                                                                                         |
| <b>Dr. B.R. Ambedkar</b>  | <b>Drafting Committee</b><br><b>7 Members:</b> Dr. B.R. Ambedkar (Chairman), <ul style="list-style-type: none"> <li>• <b>Members:</b> N. Gopalaswamy Ayyangar, Alladi Krishnaswamy Ayyar, Dr. K.M. Munshi, Syed Mohammad Saadullah, N. Madhava Rau (Replaced B.L. Mitter who resigned due to ill health), T.T. Krishnamachari (Replaced D.P. Khaitan who died in 1948).</li> </ul> <b>Drafting Process</b> <ul style="list-style-type: none"> <li>• <b>First Draft:</b> Published in February 1948</li> <li>• <b>Public Feedback Period:</b> Eight months</li> <li>• <b>Second Draft:</b> Published in October 1948</li> <li>• <b>Total Meetings:</b> 141 days</li> <li>• <b>Completion Time:</b> Less than six months</li> </ul> |

## Minor Committees

- **Dr. Rajendra Prasad:** Finance and Staff Committee, National Flag Committee.
- **Alladi Krishnaswami Ayyar:** Credentials Committee.
- **B. Pattabhi Sitaramayya:** House Committee, Chief Commissioners' Provinces Committee.
- **Nalini Ranjan Sarkar (Non-member):** Financial Provisions Committee.
- **S.K. Dar (Non-member):** Linguistic Provinces Commission.
- **Jawaharlal Nehru:** Draft Constitution Committee.
- **Usha Nath Sen:** Press Gallery Committee.
- **S. Varadachari (Non-member):** Citizenship Committee, Supreme Court Committee.
- **Dr. K.M. Munshi:** Order of Business Committee.
- **G.V. Mavalankar:** Functions of Constituent Assembly Committee.

## ENACTMENT AND ENFORCEMENT OF THE CONSTITUTION

| Enactment                                                                                                                                                                                                                                                                                                                                                                                                                                         | Enforcement                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>• It was adopted on 26 November 1949.</li> <li>• Out of a total 299 members of the Assembly, only 284 were actually present on that day and signed the Constitution.</li> <li>• At that time, it contained the Preamble, 395 Articles, and 8 Schedules.</li> <li>• The Preamble was enacted after the entire Constitution was already enacted to align with the philosophy of the Constitution.</li> </ul> | <ul style="list-style-type: none"> <li>• Some provisions of the Constitution came into force on Nov 26, 1949 itself, viz. Citizenship, Elections, provisional Parliament, temporary and transitional provisions, and short titles contained in Articles 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392 and 393.</li> <li>• Major part came into force on Jan 26, 1950 (commencement day - celebrated as Republic Day).</li> <li>• <b>Jan 26, 1930:</b> Purna Swaraj Day was celebrated following the Lahore Session (December 1929) of the Indian national congress.</li> <li>• The Indian Independence Act, 1947 &amp; GoI Act, 1935 with all its enactments, were repealed.</li> <li>• The Abolition of Privy Council Jurisdiction Act (1949) continued.</li> </ul> |

## SOURCES OF INDIAN CONSTITUTION

| Sources                              | Features Borrowed                                                                                                                                                     |
|--------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Govt. of India Act, 1935</b>      | Federal scheme, Governor's office, Judiciary, Public Service Commission, Emergency Provisions and Administrative details.                                             |
| <b>British</b>                       | Parliamentary govt., Rule of Law, Single Citizenship, Cabinet System, Parliamentary privileges, Bicameralism, and prerogative writs.                                  |
| <b>US</b>                            | Fundamental Rights, Independent Judiciary, Impeachment of President, Judicial review, Removal of Supreme Court and High Court judges and post of Vice-president.      |
| <b>Irish</b>                         | DPSP, Method of election of President and Nomination of Members to Rajya Sabha.                                                                                       |
| <b>Canadian</b>                      | Federation with a strong centre, vesting Residuary powers to the centre, Appointment of State Governors by the Centre and Advisory Jurisdiction of the Supreme Court. |
| <b>Australian</b>                    | Concurrent List, Joint sitting of both the Houses of Parliament.                                                                                                      |
| <b>Germany (Weimar Constitution)</b> | Suspension of Fundamental Rights during Emergency.                                                                                                                    |
| <b>USSR</b>                          | Fundamental Duties and the ideal of Justice (Social, Economic and Political) in the Preamble.                                                                         |
| <b>French</b>                        | Republic and the Ideals of Liberty, Equality and Fraternity in the Preamble.                                                                                          |
| <b>South African</b>                 | Procedure for Amendment of the Constitution and election of members of Rajya Sabha.                                                                                   |
| <b>Japanese</b>                      | The Procedure Established by Law.                                                                                                                                     |

